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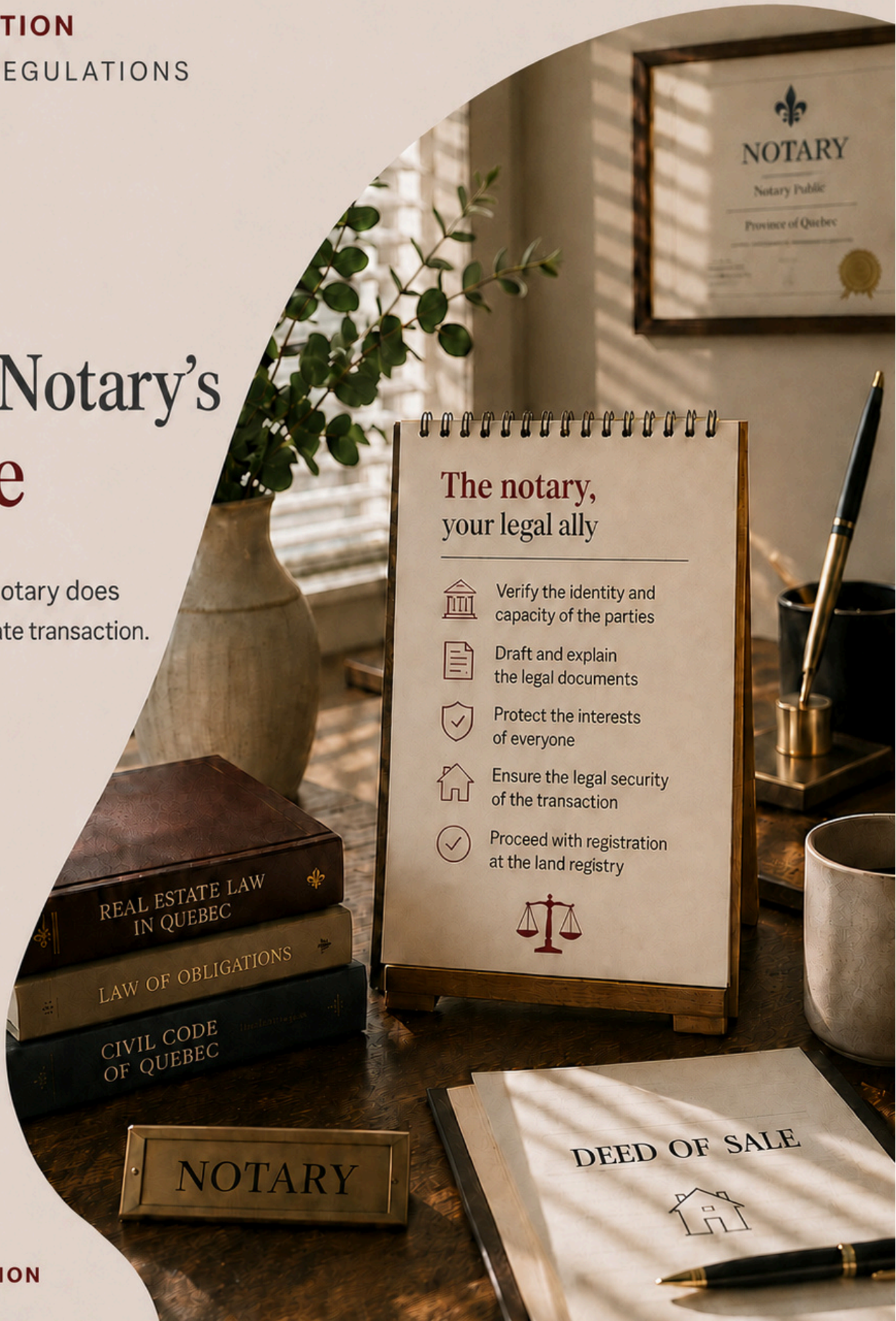
№ 36

COLLECTION

LAW & REGULATIONS

The Notary's Role

What the notary does in a real estate transaction.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION QUEBEC & LEGAL · GUIDE NO. 36

The Notary's Role

What the notary does in a Quebec real estate transaction

In Quebec, no sale of real estate is concluded without a notary. This legal professional secures the transaction, protects the parties and makes the sale official. Knowing it means approaching the signature with peace of mind.

This guide explains the role of the notary, the signing process, and the costs associated with it.

Informative content. Each chapter ends with a lined "My Notes" page.

In Quebec, no sale of real estate is concluded without a notary. This legal professional secures the transaction, protects the parties and makes the sale official. This guide explains its role, what it checks, how the signing takes place and the associated costs.

Knowing it means approaching the signature with peace of mind.

CHAPTER

An impartial public officer

> *Understand your particular position.*

The notary is a **public officer** : he acts impartially to give the deed of sale its official force. He verifies, writes, authenticates and preserves the documents.

Its role is to secure the transaction for *all* the parties, not to defend just one. In a purchase, it is usually the buyer who chooses the notary - often because it is he (or his lender) who assumes the costs.

- Impartiality: he does not take sides.
- Authentic force: the act he receives is proof.
- Conservation: it keeps the original (the minute).

The notary is not “your lawyer”: he acts impartially to give the sale its official force and secure all parties. In a purchase, it is usually the buyer who chooses it, often because he assumes the costs.

> EMILIE'S ADVICE
>
> *The notary is not “your lawyer”. It protects the validity of the sale for everyone. If there is an issue between you and the seller, you need your own advisor, not the notary.*

CHAPTER

What the notary checks and prepares

> *Know the work behind the signature.*

Most of the work of the notary is done **before** on the day of signing:

- **Title review** : confirm that the seller is the owner, without hidden charges (mortgage, seizure).
- Analysis of **certificate of location** and easements.
- Writing of the**act of sale** and the mortgage deed.
- Receipt and redistribution of **funds** (repayment of the old mortgage, payment to the seller).
- **Publication** of the sale in the Land Register.

It is this meticulous work that saves you from unpleasant surprises after the purchase.

Most of his work is done before signing: examination of the titles (is the seller the owner, without hidden charges?), analysis of the certificate of location and easements, drafting of the deeds, then receipt and redistribution of funds. This meticulous work prevents you from unpleasant surprises after the purchase.

> EMILIE'S ADVICE
>
> *Provide your documents to the notary as soon as possible. A complete file sent on time means a stress-free signature and sometimes a few days saved.*

CHAPTER

Signature and fees

> *Know what to expect on the big day.*

On the day of signing, the notary explains the deed to you, answers your questions, collects the signatures and makes the payments. This is also when you receive the keys (according to the agreed possession date).

On the budget side, include in your closing costs:

- The **fees** of the notary.
- The **disbursements** : publication costs, copies, research.

Useful reminder: the **welcome tax** is not paid at the notary - it is the subject of a municipal invoice sent a few weeks or months later.

On the big day, the notary explains the deed, collects the signatures and makes the payments. Include fees and disbursements (publication, copies) in your closing costs. Reminder: the welcome tax is not paid at the notary, but by municipal invoice later.

> EMILIE'S ADVICE
>
> *Ask the notary for a written estimate of costs from the outset. You will avoid the surprise of "how much I have to bring" the day before signing.*

CHAPTER

Choose and prepare your notary well

> *Approach the signature with peace of mind.*

The choice of notary is often left to the buyer. Some guidelines to help you decide:

- A **recommendation** from your broker or lender is a good place to start.
- Check its **availability** in relation to your closing date.
- Make sure it **answers your questions** clearly.

Prepare for your part: valid identity documents, bank details, proof of home insurance in force for the date of possession. Having a ready file speeds everything up.

Contact the notary as soon as the promise is accepted, not the day before: good notaries are busy and a signature is being planned. Have your identification documents, bank details and proof of current insurance ready - a complete file speeds everything up.

> EMILIE'S ADVICE
>
> *Contact the notary as soon as the promise to purchase is accepted, not the week before. Good notaries are busy, and a signing must be planned several weeks in advance.*

CHAPTER

After signing: what remains

> *Understand the consequences of the sale.*

The signing isn't quite the end. The notary completes a few more steps:

- **Publication Official** of the sale and mortgage in the Land Register.
- **Disbarment** of the seller's old mortgage.
- Sending **copies** of the act to the parties.

For your part, keep your copy of the deed of sale carefully: it will be used for your taxes, a future resale, or any questions about the property.

After signing, the notary publishes the sale in the Land Register, cancels the old mortgage and sends the copies. Keep your bill of sale carefully: it will be used for your taxes, a future resale or any questions about the property.

> EMILIE'S ADVICE
>
> *Store your bill of sale and your certificate of location in a safe place. The day you resell, these documents will save you valuable time.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Choose a notary (often recommended by the broker or lender).
2. Gather my documents and ID.

Within 30 days

1. Have titles and certificate of location examined.
2. Budget fees and disbursements.

Then

1. Sign having understood the act, questions asked.

For a peaceful signature

1. Choose and contact the notary as soon as the promise is accepted.
2. Prepare my documents, funds and proof of insurance in advance.

REFERENCES

Resources & glossary

- Notary: public officer who secures and authenticates the sale.
- Examination of titles: verification of ownership and encumbrances.
- Deed of sale: official document transferring ownership.
- Land register: public register where the sale is published.
- Disbursements: publication and copy costs, in addition to fees.

- Notary: public officer who secures and authenticates the sale.
- Examination of titles: verification of ownership and encumbrances.
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- Land register: public register where the sale is published.

- Cancellation: erasure of the seller's old mortgage.

GO FURTHER

Quiz - test yourself

1. In Quebec, a sale of real estate is concluded:

A) Without notary
B) Mandatory before a notary
C) At the bank only
D) By email

2. The notary acts:

A) For the seller alone
B) With impartiality, for all parties
C) For the city
D) For the bank only

3. The title review serves to:

A) Decorate the act
B) Confirm ownership and detect hidden charges
C) Set the price
D) Pay taxes

4. The sale is then published:

A) In the newspaper
B) In the Land Register
C) At the OACIQ
D) Nowhere

5. The notary's expenses are:

A) His fees
B) Publication, copying and research costs
C) The welcome tax
D) Insurance

6. The welcome tax is paid:

A) At the notary
B) Later, by municipal bill
C) Never
D) At the bank

7. The choice of notary often comes down to:

A) To the seller
B) To the buyer
C) In the city
D) To the neighbor

8. For a stress-free signing, you must:

A) Wait the day before
B) Contact the notary as soon as the promise is accepted
C) Do not prepare anything
D) Choose at random

9. After the sale, the notary:

A) Forget the file
B) Publishes the sale and cancels the old mortgage
C) Resell the house
D) Sets taxes

10. Your copy of the deed of sale:

A) Is useless
B) Store carefully for the future
C) Throws itself away
D) Belongs to the bank

Answers

1. B - The notary is essential (intro).
2. B - Impartial public officer (chap. 1).
3. B - Verification of ownership (chap. 2).
4. B - Publication in the Land Register (chapters 2 and 5).
5. B - Disbursements separate from fees (chap. 3).
6. B - Subsequent municipal bill (chap. 3).
7. B - The buyer usually chooses (chapters 1 and 4).
8. B - Anticipate (chap. 4).
9. B - Aftermath of the sale (chap. 5).
10. B - To be kept for taxes and resale (chap. 5).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

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